

25LBCV00282 25LBCV00282

County: los-angeles

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BACKGROUND

On February 5, 2025, Plaintiffs commenced this action against Defendants Uber Technologies, Inc. ("Uber"), Raisier, LLC, Raisier-CA LLC, Juan Torres, and John Garvey ("Defendant").

The operative FAC was filed on July 9, 2025 and alleges negligence, Statutory Liability Under CVC § 17150, and loss of consortium arising out of a motor vehicle collision wherein Plaintiffs allege they were injured while passengers in an Uber.

On May 8, 2026, Plaintiff Lilit Sahakyan filed the instant Motion to quash service of Defendant's Subpoenas for Production of Business Records to Kaiser Foundation Health Plan, Inc., Kaiser Permanente/Southern California, Kaiser Permanente Billing Department/The Central Release of Information Unit, Kaiser Radiology/Release of Information Unit and Kaiser Permanent/Central Release of Information Unit.

On June 26, 2026, Defendant filed opposition.

On July 7, 2026, Plaintiff filed a reply.

DISCUSSION

Applicable

Law

Under Code of Civil Procedure section 1987.1, subdivision (a), the court may quash, modify, or direct compliance with a subpoena requiring the production of documents at a deposition, or make any other order "as may be

appropriate to protect the person from unreasonable or oppressive demands.”
(Code Civ. Proc., § 1987.1, subd. (b)(2).)

A party may obtain discovery of any non-privileged matter that is relevant to the subject matter of the action “if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.)

“The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc. § 2031.060, subd. (a).) Such a motion will include a meet and confer declaration pursuant to Code Civ. Proc. § 2016.040. (See *id.*)

Analysis

A.

Meet and Confer

California

Code of Civil Procedure section 2016.040 requires that a meet and confer declaration in support of discovery a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.

Defendant

argues that Plaintiff’s meet and confer efforts were insufficient. However, Defendant’s own retelling of events establish that Plaintiff discussed their objections to the instant subpoenas via phone with Defendant before filing the instant Motion. (Opposition, pp. 2-3.) Thus, Plaintiff’s meet and confer efforts are sufficient.

B.

Merits

Plaintiff moves to quash service of Defendant’s Subpoenas for Production of Business Records to Kaiser Foundation Health Plan, Inc., Kaiser Permanente/Southern California, Kaiser Permanente Billing Department/The Central Release of Information Unit, Kaiser Radiology/Release of Information Unit and Kaiser Permanent/Central Release of Information Unit (collectively the “Subpoenas”).

The subpoenas request the following: "Complete records from 03/01/2013 to the present, including but not limited to any records/documents that may be stored digitally and/or electronically: documents, itemized statements of the billing charges, medical reports, doctor's entries, insurance records, claim records, nurse's notes, progress reports, radiology reports, MRI reports, lab reports, physical therapy records, case history, emergency records, diagnosis, prognosis, condition, admit and discharge records." (Kazi Decl., Ex. A.)

Plaintiff contends that the subpoenas are overbroad and violate Plaintiff's constitutional right of privacy such that the only way to protect Plaintiff's privacy interest is to quash the deposition subpoena. Plaintiff contends that the subpoena is non-specific and non-particularized to the injuries to those parts of Plaintiff's body which were injured as a result of the subject incident.

Plaintiff also claims that she met and conferred telephonically with counsel for Defendant during which Plaintiff's counsel offered a "First Look Agreement" for the Kaiser subpoenas along with a privilege log for any redactions made to records pertaining to injuries and body parts at issue, but Defendant did not agree to this arrangement.

In opposition, Defendant contends that the Plaintiff's proposed limitation, that the subpoenas should be restricted to records pertaining only to specific body parts, is unreasonably burdensome for Kaiser to comply with as Kaiser does not store records by individual injury region but rather by patient visit and by date of service. Defendant asserts that he has limited all of the other Subpoenas issued by body parts and time frame, but the Kaiser Subpoenas were only limited by time frame because, as Plaintiffs' counsel knows, Kaiser will not accept Subpoenas limited in any way besides a set time period.

As to the "first look" arrangement Plaintiff proposed, Defendant argues that Plaintiff's counsel could inadvertently withhold relevant records, under the incorrect belief that a certain complaint or visit is unrelated to claims related to this incident. Defendant contends that he would not know what was being withheld, even with a privilege log, because the privilege log would not be sufficiently detailed for defense counsel to determine if a document that was withheld was in fact relevant and necessary to fully defend against this action.

In reply, Plaintiff argues that the first look agreement is a

workable accommodation and Defendant offers no alternative safeguard like an in-camera review.

Here, when private records are sought in discovery, the burden is on the party seeking the protected information to establish that it is entitled to the information. (See *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1017 [stating that the party requesting constitutionally requested information must establish “direct relevance” to the claims].) “Mere speculation as to the possibility that some portion of the records might be relevant to some substantive issue does not suffice.” (Ibid.) “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.” (Id. at 1014.)

Defendant carries his burden and establishes that medical records relating to Plaintiff's injuries are relevant to Plaintiff's claims. Defendant has also shown that a subpoena to Kaiser limited to specific body parts is not practical as Kaiser will not comply due to its policy. The subpoena is already limited to a reasonable date range, and Plaintiff's right to privacy may be safeguarded with a protective order. The right to privacy must be balanced against “the compelling public need for discovery.” (*Davis*, supra, 7 Cal.App.4th, at p.1014.) In this case, that balance weighs in favor of discovery.

Thus, the Court finds that the deposition subpoenas are properly limited in temporal scope and cannot be further limited by body part without unduly burdening Kaiser based on their internal policies and limitations.

A protective order or in camera review would also allay Plaintiff's concerns. The parties are ordered to meet and confer to come up with a proposed protective order and/or plan for in camera review of the records, and file a joint brief regarding the same within ten (10) days of this Order as trial is fast approaching.

CONCLUSION

Plaintiff Lilit Sahakyan's Motion to Quash Defendant John Garvey's Deposition Subpoena to Kaiser is DENIED.

The

parties are ordered to meet and confer to come up with a proposed protective order and/or plan for in camera review of the records, and file a joint brief regarding the same within ten (10) days of this Order.

Moving party to give notice.